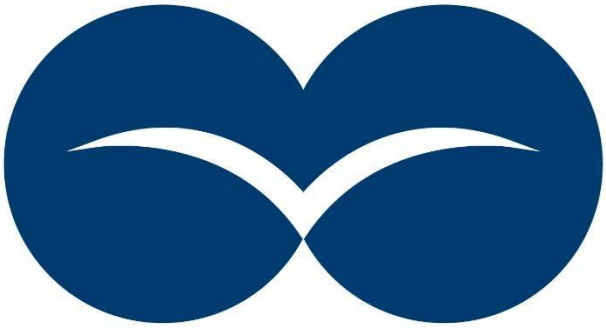
PERSONAL DATA PROTECTION - POLICY



SEAGULL
MARITIME

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PERSONAL DATA PROTECTION POLICY

INTRODUCTION

Seagull Maritime's Personal Data Protection Policy (GDPR) policy has been drawn up to conform with the EU's General Data Protection Regulation (GDPR) and the in the UK under the Data Protection Act 2018 (DPA18).

DEFINITIONS

(Data) Controller has the meaning ascribed to it in Article 32 of DPA18 "(Data) Processing" shall have the meaning ascribed to it in DPA18. "(Data) Processor" has the meaning ascribed to it in Article 32 of DPA18. "(Data) Subject" shall have the meaning ascribed to it in DPA18.

DPA18 means the UK primary legislation the Data Protection Act 2018, as subsequently amended, which repealed the Data Protection Act 1998.

GDPR means Regulation (EU) 2016/679 of the European Parliament and the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such date (General Date Protection Regulation).

Personal Data shall have the meaning ascribed to it in DPA18.

Processing means any function that is applied on personal data, whether automated or not, such as collection, recording, organisation, storage, adaptation, retrieval, consultation, use, disclosure through transmission, dissemination, alignment, combination restriction, erasure or destruction.

Register of Systems means a register of all systems or contexts in which personal data is processed by the Company.

Responsible Person means the person within the Company responsible for data protection.

Sensitive Processing shall have the meaning ascribed to it under Article 35 of DPA18.

Technical and Organisational Security Measures means those measures aimed at protecting personal data against accidental or unlawful destruction or accidental loss, alteration, unauthorised disclosure or access, in particular where the processing involves the transmission of data over a network, and against all other unlawful forms of processing.

The Company means Seagull Maritime and it's applicable entities, its holding Company and any sister companies and subsidiary companies of either that might exist.

PRINCIPLES

The Company will comply with the EU's General Data Protection Regulation (GDPR) and the UK Data Protection Act 2018, which replaces the Data Protection Act 1998 from 25 May 2018. To carry out the services of this engagement and for related purposes such as updating and enhancing the Company's client records, analysis for management purposes and statutory returns, legal and regulatory compliance and crime prevention the Company may obtain, process, use and disclose personal data about suppliers, staff and any other persons interacting with the company.

The Company is committed to ensuring that personal data be:

a) processed lawfully, fairly and in a transparent manner in relation to individuals.
b) collected for specified, explicit and legitimate purposes and not further processed in a manner that is incompatible with those purposes; further processing for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes shall not be incompatible with the initial purposes.
c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.
d) accurate and, where necessary, kept up to date; every reasonable step must be taken to ensure that personal data that are inaccurate, having regard to the purposes for which they are processed, are erased or rectified without delay.
e) kept in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the personal data are processed; personal data may be stored for longer periods insofar as the personal data will be processed solely for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes subject to implementation of the appropriate technical and organisational measures required by the GDPR in order to safeguard the rights and freedoms of individuals.
f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorised or unlawful processing and against accidental loss, destruction or damage, using appropriate technical or organisational measures.

SCOPE

This policy/privacy notice applies to anyone who interacts with or is employed/contracted by the Company in any way. This may also include the personal data of employees of the Company's vendors, suppliers or agencies who have contracted one of the Company's services or have enquired about doing so.

This policy applies to individuals if they ask the Company about, contract or use any of the services, or if they work as a contractor or employee for a business that contracts, uses or enquires about the Company's services. It also applies to individuals if they seek employment with the Company, or if they send the Company personal information in unsolicited employment applications. It describes how the Company handles their information, regardless of the way the information was acquired (for example, by email, through the website, by phone, personally etc.).

LAWFUL BASIS FOR COLLECTING INFORMATION

The Company processes an individual's personal information for several lawful reasons, including managing all aspects of the Company's relationship with the individual, to help the Company improve its services and products, to meet its own legal obligations (for example, with regards to licensing) and to exercise its rights or handle claims.

By law, the Company must have a lawful reason for processing personal information. The Company processes standard personal information about individuals if this is:

- **(a)** necessary to provide the services set out in a contract – if the Company has a contract with an individual or business, or the employer/contracting entity of an individual, the Company will process that personal information to fulfil that contract,
- **(b)** in the Company's or a third party's legitimate interests – details of those legitimate interests are set out in more detail below.
- **(c)** required or allowed by law.
- **(d)** to manage the Company's relationship with clients, vendors, its business and third parties who provide products or services for the Company.
- **(e)** to investigate complaints.
- **(f)** to keep the Company's records up to date and to provide clients with marketing as allowed by law.
- **(g)** to develop and carry out marketing activities and to show clients information that is of interest to them, based on the Company's understanding of their preferences.
- **(h)** for statistical research and analysis so that the Company can monitor and improve products and services or develop new ones.
- **(i)** to contact clients about market research the Company is carrying out.
- **(j)** to enforce or apply the Company's website terms of use, the Company's contractual terms and conditions or other contracts, or to protect the Company's rights, property or safety.
- **(k)** to exercise the Company's rights, to defend it from claims and to keep to laws and regulations that apply to us and the third parties the Company works with.
- **(l)** to take part in, or be the subject of, any sale, purchase, merger or takeover of all or part of the Company's business.

The Company processes special category information about individuals because:

- **(a)** It is necessary for an insurance purpose (for example, arranging, providing or managing an insurance contract, dealing with a claim made under an insurance contract, or relating to rights and responsibilities arising in connection with an insurance contract or law).
- **(b)** It is necessary to establish, make or defend legal claims (for example, claims against the Company for insurance).
- **(c)** It is in the public interest, in line with any laws that apply.
- **(d)** It is information that the individual has made public.
- **(e)** The Company has the individual's permission.

As is best practice, the Company will only ask an individual for permission to process their personal information if there is no other legal reason to process it. If the Company needs to ask for an individual's permission, it will make it clear that this is what the Company is asking for and ask the individual to confirm their choice to give us that permission.

If the Company cannot provide a product or service without the individual's permission the Company will make this clear when it asks for the individual's permission. If the individual later withdraws their permission, the Company will no longer be able to provide them with the product or service that relies on having their permission.

HOW PERSONAL INFORMATION IS COLLECTED

The Company normally collects personal information from clients and suppliers. The Company collects personal information about individuals:

(a) through their own direct contact with the Company, including by phone, by email, by responding to job applications or filling in forms, or face-to-face (for example, in interviews, or directly collected by one of the Company's employees).

(b) through the contact of their employer/contracting entity who contracts the Company for any other service the execution of which requires an individual's personal data.

The Company also collects information from other people and organisations. For all the Company's clients or agency employees or contractors, the Company may collect information from:

(a) a person's employer or contracting entity.

(b) a person's recruitment or employment agency.

(c) any other sub-contracted entities who work with the Company in relation to a person's employment.

DESCRIPTION OF PERSONAL INFORMATION COLLECTED

The Company processes two categories of personal information about individuals and (for employees) their next of kin:

(a) standard personal information (for example, contact details, information that the Company uses to identify individuals or companies or manage the Company's relationship with them).

(b) special categories of information (for example, passport details for directors).

Standard Personal Information

Standard personal information includes:

(a) contact information, such as name, username, address, email address and phone numbers.

(b) residence, nationality, age, date of birth, place of birth and national identifiers (such as National Insurance number or passport number and respective expiry dates, as well as scans of such documents).

(c) employment information.

(d) details of any interaction with the Company, such as any complaints or incidents.
(e) financial details, such as details about payments and bank details.
(f) information about how individuals use the Company's website, or other technology including IP addresses or other device information.

Special Categories

Special category information includes:

(a) Credit checks or background referencing

SHARING PERSONAL INFORMATION

The Company shares personal information within the Company's Group and with people acting on the Company's behalf. The Company also shares client, supplier and individuals' information in line with the law (for example, to meet conditions of statutory or regulatory requirements or approvals).

The Company sometimes needs to share information with other people or organisations for the purposes set out in this privacy notice.

For all the Company's clients, including their individual personnel, and the Company's own personnel, the Company shares personal information with:

(b) other members of the Company's Group.
(c) insurance agents or brokers while implementing a policy or presenting a claim.
(d) suppliers who help deliver products or services on the Company's behalf.
(e) other third parties with whom the Company works to provide its products and services, such as agents working on the Company's behalf, other insurers, actuaries, auditors, solicitors, translators and interpreters, tax advisers, debt-collection agencies, fraud-detection agencies, regulators, license issuers, data-protection supervisory authorities.
(f) people or organisations that the Company must, or is allowed to, share individuals' personal information with by law (for example, for fraud-prevention, statistical or licensing purposes).
(g) the police and other law-enforcement agencies to help them perform their duties, or with others if the Company must do so by law or under a court order.
(h) if the Company (or any member of the Company's group) sell or buy any business or assets, the potential buyer or seller of that business or those assets.
(i) a third party who takes over any or all the Company Group's assets (in which case personal information the Company holds about its clients may be one of the assets the third party takes over).

TRANSFERRING PERSONAL INFORMATION OUTSIDE THE EEA

In the execution of the Company's operations the Company may transfer elements of Personal Information outside the EEA. The Company takes steps to make sure that when it transfers personal information to another country, appropriate protection is in place, in line with data-protection laws.

RETENTION OF PERSONAL INFORMATION

The Company keeps individuals' personal information in line with set periods calculated using the following criteria:

(a) How long has the individual been a client or supplier of the Company, the types of services used, and when they will stop being a client or supplier. For employees and contractors of the Company, how long the individual has been employed.

(b) How long is it reasonable to keep records to show that the Company has met the obligations it has to by law.

(c) Any periods for keeping information which are set by law or recommended by regulators, professional bodies or associations.

(d) Any relevant proceedings that apply.

RIGHTS OF INDIVIDUALS

Individuals have the right to access their information and to ask the Company to correct any mistakes and delete and restrict the use of their information.

They also have the right to object to the Company using their information, to ask them to transfer any information they have provided; to withdraw the permission they have given to the Company to use their information and to ask the Company not to use automated decision-making, which will affect them.

- ✓ Individuals have the following rights (certain exceptions apply):
- ✓ Right of access
- ✓ The right to make a written request for details of personal information and a copy of that personal information.
- ✓ Right to rectification
- ✓ The right to have inaccurate information corrected or removed.
- ✓ Right to erasure ('right to be forgotten')
- ✓ The right to have certain personal information erased.
- ✓ Right to restriction of processing
- ✓ The right to request that personal information only be used for specific purposes.
- ✓ Right to object

The right to object to processing of personal information in cases where processing is based on the performance of a task carried out in the public interest or the Company has let the individual know that the processing is necessary for the Company's or a third party's legitimate interest.

Right to data portability

The right to ask for the personal information made available to the Company to be transferred to the individual or a third party in machine-readable formats.

Right to withdraw consent

The right to withdraw any consent previously given to handle personal information. If consent is withdrawn, this will not affect the lawfulness of the Company's use of an individual's personal information prior to the withdrawal of consent and the Company will let the individual know if, consequently, the Company will no longer be able to provide the selected services.

Right in relation to automated decisions

Individuals have the right not to be subject to a decision based solely on automated processing which produces legal effects concerning them or similarly significantly affects them, unless it is necessary for entering into a contract with them, it is authorised by law, or the individual has given their explicit consent. The Company will let individuals know when such decisions are made, the lawful grounds relied on and the rights the individual has.

Other than the right to object to the use of data for direct marketing (and profiling to the extent used for the purposes of direct marketing), the individual's rights are not absolute: they do not always apply in all cases and the Company will inform individuals in correspondence how it will be able to comply with such a request. If a request is made, the Company will request confirmation of identity if necessary, and provision of information that helps better understand the request. If the request cannot be satisfied, an explanation will be offered.

To exercise individual rights please contact compliance@seagullsecurity.com, either directly or via our website.

SECURITY MEASURES

Organisational Measures

The Company has adopted the following organisational measures to assess, develop and implement controls that secure information and protect personal data:

Business Continuity

The Company has a business continuity policy including protocols and measures in place to back-up personal data and ensure that it can be recovered and maintained in the event of an incident.

Risk Assessment

The Company conducts regular risk assessments of all aspects of the Company's activity.

Management Information & Reporting

Regular security reports and information are passed on to management to ensure that adequate resources and funding are made available for data security.

Awareness & Training

A culture of security and data protection awareness ensures that employees, contractors and any third-party working for or with the organisation, know what is expected of them and how to maintain compliance. Regular

and ongoing training sessions for staff and personnel ensure that the latest information, guidance, legislation and regulations are known and understood.

Reviews & Audits

The Company conducts regular reviews and audits to ensure that data protection functions, activities and systems are still effective and fit for purpose.

Due Diligence

The Company conducts appropriate due diligence of its subcontractors, clients, vendors, suppliers and partners to ensure that data passed on to a third party, whether inside or outside the EU/EEA, is afforded the same level of protection as that imposed by the Company.

TECHNICAL MEASURES

The Company has adopted the following measures and controls to systems and technological aspects of the Company, such as devices, networks and hardware.

Building Security

The Company operates from a secure building affording access control measures to the estate, the building the floor and the offices. Each floor is covered by CCTV, security lighting and alarms.

Disposal

The Company enforces correct disposal of paperwork and devices. Shredding and certified disposal of paper format hard-copy records is enforced, and printing of network documents discouraged. IT disposal is managed to guarantee effective and complete erasure of any personal data or access.

Cyber Security

The Company employs measures to protect its IT infrastructure from advanced forms of hacking, vulnerabilities and constantly evolving threats.

Passwords

Employees are aware that they must not share passwords or leave systems unlocked when unattended.

BREACH REPORTING

Data Protection Points of Contact.

If any individual has any questions, comments, complaints or suggestions in relation to this notice, or any other concerns about the way in which the Company processes information or they wish to report a breach, they should contact the Data Protection Officer at compliance@seagullsecurity.com

An individual also has a right to make a complaint to a local privacy supervisory authority.

Details on supervisory authorities relevant to your location or region are available from compliance@seagullsecurity.com

Signed:

Darren Watts

Group Compliance Director

01/07/2025